

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF NURSING**

IN RE:	)	
YVONNE GELINEAU	)	Docket No. M2016-4
License No. 075.0009374	)	

REINSTATEMENT STIPULATION AND CONSENT ORDER

NOW COME the State of Vermont, by and through State Prosecuting Attorney Rachel Allen, and the Respondent, Yvonne Gelineau, who stipulate and agree as follows:

Board Authority

1. The Vermont State Board of Nursing (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. § 129(a); 3 V.S.A. § 129a; 3 V.S.A. § 814(d); 26 V.S.A. §§ 1595 and 1598; the Administrative Rules of the Board of Nursing ("ARBN"); and the Rules of the Office of Professional Regulation.

Stipulated Facts

2. Yvonne Gelineau (the "Respondent") of Hardwick, Vermont, is licensed by the State of Vermont as a Licensed Nursing Assistant under license number 075.0009374. This license was originally issued on or about May 25, 1998, and expired on November 30, 2012. Respondent's license is currently suspended.
3. On or about January 4, 2013, Specification of Charges were filed against Respondent. The Specification of Charges alleged the use of undue force with dementia patients and the use of vulgar and demeaning language with dementia patients. *See* Attachment A.
4. On April 8, 2013, the Board held a contested hearing under docket number 2012-213. Respondent did not appear. The Board found that Respondent had engaged in the unprofessional conduct alleged in the Specification of Charges and indefinitely suspended Respondent's license. *See* Attachment B.
5. On or about March 14, 2016, the Vermont Secretary of State's Office of Professional Regulation ("OPR") received Respondent's petition for reinstatement.

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Understandings

6. Respondent acknowledges that the facts above are true and that the conditions set out in the Consent Order below are appropriate and necessary to protect the public.
7. Respondent understands that the Nursing Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
8. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
9. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
10. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Stipulation and Consent Order.
11. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
12. Respondent voluntarily waives Respondent's right to a contested hearing before the Board of Nursing and waives any right to appeal from this Stipulation and Consent Order.
13. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Nursing hereby **REINSTATES** Respondent's license.
- B. The Board of Nursing hereby **REPRIMANDS** the Respondent's license.
- C. The Board of Nursing hereby **CONDITIONS** the Respondent's license to practice nursing **FOR A MINIMUM OF ONE (1) YEAR** commencing with the date of reinstatement. The conditions will be as follows:
 1. Re-issuance of License. Respondent shall meet all requirements for licensure. Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."

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2. Length of Time of Conditions Imposed. The conditions shall remain in place until Respondent has completed all conditions ordered. Respondent shall be subject to the conditions until Respondent completes a **minimum of one (1) year** of supervised nursing in which Respondent works at least forty (40) hours every two (2) weeks as a nursing assistant. Part time hours of fewer than forty (40) hours every two (2) weeks shall be credited on a prorated basis. Respondent shall be prohibited from working more than forty (40) hours per week.
3. Course Requirement. Respondent must successfully complete (i.e., receive a passing grade, if applicable) the following course that has prior approval of the Board or its designee, and then submit written documentation of completion:
 - a. **“Communicating with Older Adults with Dementia”**, through Relias Learning.

This course must be completed within ninety (90) days of the date of entry of this Stipulation and Consent Order. Failure to complete such courses within the prescribed timeframe shall constitute a violation of this Order.

4. Notification to Employers/Nursing School. Respondent shall provide a copy of this Stipulation and Consent Order to all employers in any current or future setting in which Respondent practices as a nursing assistant and inform them of Respondent’s conditional license status. Within ten (10) days of the date of entry of this Consent Order or of any subsequent nursing employment, Respondent shall cause Respondent’s immediate supervisor to submit to the Board an employer agreement form approved by the Board, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.

In the event Respondent is attending a nursing program which has a clinical portion that involves actual patient care, Respondent shall provide a copy of the Stipulation and Consent Order to the Program Director. Respondent shall cause the Program Director to submit to the Board a nursing program agreement form approved by the Board, acknowledging receipt of the Stipulation and Consent Order and the ability of the program to comply with the conditions in the Consent Order during clinical experience.

5. Reports from Employers/Program Director. Within one (1) month of the date of reinstatement or within one (1) month of the commencement of nursing employment and **monthly** thereafter, Respondent shall cause every nursing employer Respondent has worked for during the month to submit to the Board an evaluation of Respondent’s work performance and attendance during that month. In the event Respondent is attending a nursing program, Respondent shall cause the Program Director to submit to the Board, on a monthly basis, a written evaluation of Respondent’s performance and attendance. These reports shall be submitted in writing on forms issued by the Board. All employer reports shall indicate satisfactory

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performance (i.e., consistently meeting all standards of nursing practice) and attendance.

6. Practice Under Supervision. Respondent shall practice as a nursing assistant only in a setting where Respondent has direct supervision for the entire shift by a licensed nurse that is in good standing with the Board.
7. Types of Employment Prohibited. Respondent shall not work in a supervisory role. Respondent shall not work for a nurse registry, traveling nurse agency, float-pool, home health care agency, temporary nursing employment agency, or as a private duty nurse or personal care provider requiring a nursing or nursing assistant license during the effective period of this Consent Order.
8. Interview with the Board or its Designee. Respondent shall appear in person for interviews with the Board or its designee upon request.
9. Out-of-State Practice. Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval from the Board. The Board will approve out-of-state nursing practice so long as Respondent can still comply with the provisions of this Consent Order. If Respondent receives discipline on a nursing license held in another state during the conditioned period, Respondent must inform the Board of such, in writing, within ten (10) days of receiving such discipline.
10. Notification of Place of Employment/Personal Address/Telephone Number. Within ten (10) days of the date of entry of this Consent Order, Respondent shall notify the Board, in writing, of Respondent's current place of employment, personal address, and telephone number. Respondent shall further notify the Board, in writing, within forty-eight (48) hours of any change in employment (including resignation or termination), personal address, or telephone number.
11. Notification to Other States. In the event that Respondent is licensed in nursing in any other state(s), Respondent must inform the nursing licensing board of the state(s) in which Respondent is licensed of the conditional status of Respondent's Vermont nursing license within thirty (30) days of the date of entry of this Order.
12. License Renewal. This Order does not automatically extend the license and Respondent must comply with the requirements for license renewal.
13. Costs. Respondent shall bear all costs of complying with this Consent Order.
14. Violation of this Order. If Respondent violates this Order the Board, after giving Respondent notice and an opportunity to be heard, may rescind or modify this Order and impose additional appropriate disciplinary actions. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this

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Order shall be automatically extended until the unprofessional conduct matter is concluded.

15. Completion of Conditional License Period. Respondent must petition the Board, or its designee, to remove any and all conditions on Respondent's license. Respondent must present proof that Respondent has fully complied with the terms of this Order. Respondent must also present proof of successful substance abuse rehabilitation, that Respondent poses no danger to the public or the practice of nursing, and that Respondent can safely and competently perform the duties of a licensed nurse.

- D. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.
- E. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- F. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

Dated: 4/11/16

STATE OF VERMONT
SECRETARY OF STATE

By: [Signature]
Rachel Allen
State Prosecuting Attorney

Dated: April 07 2016

YVONNE GELINEAU
RESPONDENT

By: [Signature]
Yvonne Gelineau

APPROVED AND SO ORDERED:

Dated: 5/2/16

Date of Entry: 5/2/16

VERMONT BOARD OF NURSING

By: [Signature]
Chairperson

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**STATE OF VERMONT
BOARD OF NURSING**

In re: Yvonne Gelineau
License No. 075-9374

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Docket No. 2012-213(LNA)

Appearances:

Petitioner, State of Vermont: Gabriel Gilman
Respondent: Did not appear

Presiding Officer: Larry S. Novins

DEFAULT ORDER

The Board held a hearing on the above matter on April 8, 2013 at the Office of Professional Regulation conference room in Schulmaier Hall at the Vermont College of Fine Arts in Montpelier, Vermont. Ms. Gelineau did not attend and was not represented by counsel.

Findings of Fact

1. Ms. Gelineau was licensed as a nursing assistant. Her license expired on November 30, 2012. She remains subject to the regulatory authority of this Board. 3 V.S.A. §§ 129, 129a, 814(d) expired people, 26 V.S.A. §§ 1595 and 1598, the Administrative Rules of the Board of Nursing, and the Rules of the Office of Professional Regulation.
2. On January 7, 2013 Ms. Gelineau was sent a Notice of Charges in this matter by certified mail to her last known address. A copy of the Specification of Charges is attached to this Default Order.
3. OPR Rule 3.3 requires that an Answer be filed within 20 days of the date on which the notice of charges was mailed by the Director.
4. Licensees are required to notify the Board of any change of address within 30 days. 3 V.S.A. § 129a(a)(14).
5. Stamps on the envelope indicate that Ms. Gelineau received the notice of charges on January 11, 2013.
6. Ms. Gelineau did not file an answer within 20 days.
7. On February 27, 2103 notice of the Default Hearing scheduled for this date was mailed to Ms. Gelineau at that same address by certified mail. Ms. Gelineau signed the receipt indicating she received the notice on March 11, 2013.
8. Ms. Gelineau filed an answer dated March 18, 2103 which was received on March 26, 2013.
9. Ms. Gelineau did not appear for today's hearing
10. Upon hearing the State's presentation and taking notice of its own file, the Board finds Ms. Gelineau to be in Default. The allegations contained in the State's Specification of Charges are therefore treated as the facts on which the Board's Order is based. OPR Rule

3.4, 3 V.S.A. § 809(d) and 3 V.S.A. § 814(c).

Conclusions of Law

Ms. Gelineau has received adequate or constructive notice of the charges in this matter as indicated by the Board's file and the State's presentation. Because Ms. Gelineau has failed to answer the charges, the State's factual allegations are treated as if proved. O.P.R. Rule 3.4. Accordingly, the Board finds, in this Default Hearing held pursuant to 3 V.S.A. §809(d), that Ms. Gelineau has engaged in the unprofessional conduct alleged in the State's Specification of Charges.

Order

In accordance with the above Findings of Fact and Conclusions of Law, Ms. Gelineau's right or privilege to reinstate her expired license is hereby **Suspended Indefinitely**, effective as of the date of the hearing. Should Ms. Gelineau apply for reinstatement, the Board at that time will determine whether any conditions can permit her to resume practice while protecting public health and safety.

Appeal Rights

This is a final administrative determination by the Vermont Board of Nursing.

A party aggrieved by a final decision of a board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, National Life Bldg., North, FL2, Montpelier, VT 05620-3402 within 30 days of the entry of this order.

If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a.

To request a stay of the Board's decision, please refer to the attached stay instructions.

Vermont Board of Nursing

By:

Jeanne Carr
Jeanne Carr, RN, Chair

Date: April 8, 2013

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY:

4/8/13

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF NURSING**

IN RE:
Yvonne Gelineau
License No. 075.0009374

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Docket No. 2012-213

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont and makes the following Charges against the Respondent, Yvonne Gelineau:

Board Authority

1. The Vermont Board of Nursing ("Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. § 129(a); 3 V.S.A. § 129a; 3 V.S.A. § 814(d); 26 V.S.A. § 1595; the Administrative Rules of the Board of Nursing ("ARBN"); and the Rules of the Office of Professional Regulation.

Statement of Facts

2. Yvonne Gelineau ("Respondent") of Hardwick, Vermont is licensed by the State of Vermont as a Licensed Nursing Assistant under license number 075.009374. The license was issued on May 25, 1998 and became inactive on November 30, 2012.
3. At all times relevant, Respondent was employed as a Licensed Nursing Assistant at Berlin Health and Rehabilitation Center in Berlin, Vermont.
4. On or about March 16, 2012, while working with her hall partner, C.C., Respondent provided incontinent care to M.F., a resident with dementia. Respondent ignored the hall partner's assertion that she was "all set," and joined her in cleaning the resident. In the course of doing so, Respondent applied a washcloth so roughly that M.F. cried out in pain and asked her to stop. Respondent commented, "Oh, [M.F.], you're a shitty mess, you're full of shit," and continued to clean M.F. roughly. Respondent further commented, "Oh, [M.F.], you're such a drama queen." Respondent explained to C.C., "This is how I get stuff done here."
5. The use of undue force with dementia patients, the use of vulgar language with dementia patients, and the use of language that could lead patients to feel ashamed of ordinary bodily processes all are contrary to the essential standards of acceptable and prevailing nurse-assistant practice.
6. Respondent's general practice habits are described by colleagues as "rough," "hurried," and "abrupt." Similar concerns about Respondent's practice patterns,

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some raised by patients, were documented by the Facility in Employee Performance Improvement Evaluations dated May 26, 2011, June 23, 2011, and September 30, 2011 and made known to Respondent each time.

Charges

7. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of:
- a. 26 V.S.A. § 1595(5) (is unfit or incompetent to function as a nursing assistant by reason of any cause); and
 - b. 3 V.S.A. § 129a(b)(1) and (2) (Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) performance of unsafe or unacceptable patient or client care; or (2) failure to conform to the essential standards of acceptable and prevailing practice).

Relief Requested

WHEREFORE, the license of Yvonne Gelineau should be revoked, suspended, reprimanded, conditioned, or otherwise disciplined.

DATED at Montpelier, Vermont this 4th day of January, 2013.

STATE OF VERMONT
SECRETARY OF STATE

By:



Gabriel M. Gilman
State Prosecuting Attorney

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